

SOFTWARE SERVICES AGREEMENT

This Software Services Agreement (the "Agreement") is entered into as of January 1, 2026 (the "Effective Date") by and between Acme Analytics Inc., a Delaware corporation ("Provider"), and Northwind Trading LLC, a Texas limited liability company ("Client").

1. Definitions

"Services" means the data analytics, machine learning, and reporting services described in Exhibit A. "Confidential Information" means any non-public information disclosed by one party to the other, whether oral, written, or electronic. "Deliverables" means the reports, models, and dashboards produced by Provider under this Agreement.

2. Term and Termination

The initial term of this Agreement is twelve (12) months from the Effective Date. The Agreement will automatically renew for successive twelve-month periods unless either party provides written notice of non-renewal at least thirty (30) days before the end of the then-current term. Either party may terminate this Agreement for material breach if the breach remains uncured for fifteen (15) days after written notice.

3. Fees and Payment

Client shall pay Provider a monthly fee of \$25,000, due within thirty (30) days of receipt of invoice. Late payments accrue interest at 1.5% per month. All fees are exclusive of applicable taxes. Provider may suspend Services if any undisputed invoice remains unpaid for more than forty-five (45) days.

4. Intellectual Property

Provider retains all right, title, and interest in its pre-existing intellectual property and any tools or frameworks used to perform the Services. Upon full payment, Client owns the Deliverables produced specifically for Client, excluding any Provider pre-existing IP embedded therein, for which Client receives a perpetual, non-exclusive license.

5. Confidentiality

Each party agrees to protect the other's Confidential Information with the same degree of care it uses for its own confidential information, and no less than reasonable care. Confidentiality obligations survive termination of this Agreement for a period of five (5) years. This obligation does not apply to information that is publicly available through no fault of the receiving party.

6. Limitation of Liability

In no event shall either party's aggregate liability exceed the total fees paid by Client in the twelve (12) months preceding the claim. Neither party is liable for indirect, incidental, or consequential damages,

including lost profits, even if advised of the possibility of such damages.

7. Data Protection

Provider shall implement industry-standard security measures to protect Client data, including encryption in transit and at rest. Provider shall notify Client of any data breach affecting Client data within seventy-two (72) hours of discovery. Provider processes personal data only as necessary to provide the Services and in accordance with applicable data protection laws.

8. Governing Law

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict of laws principles. Any dispute arising under this Agreement shall be resolved through binding arbitration in Wilmington, Delaware, under the rules of the American Arbitration Association.

9. Force Majeure

Neither party is liable for any failure or delay in performance due to causes beyond its reasonable control, including acts of God, natural disasters, war, terrorism, labor disputes, or governmental action. The affected party shall notify the other promptly and use reasonable efforts to resume performance.

10. Entire Agreement

This Agreement, together with its Exhibits, constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, or agreements, whether written or oral. Any amendment must be in writing and signed by both parties.